

STATE OF NEW YORK

10030--B

Cal. No. 325

IN ASSEMBLY

January 30, 2026

Introduced by M. of A. WEPRIN, BERGER -- read once and referred to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the insurance law, in relation to requiring health insurers to provide coverage for speech therapy for stuttering

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subsection (k) of section 3221 of the insurance law is amended by adding a new paragraph 24 to read as follows:

(24) (A) Every large group policy delivered or issued for delivery in this state which provides medical, major medical, or similar comprehensive-type coverage shall, upon the referral of a physician, provide coverage for all costs for speech therapy for stuttering. Such speech therapy shall include, but not be limited to, habilitative speech therapy treatment and rehabilitative speech therapy treatment for stuttering, provided such treatment is performed by a health care professional licensed pursuant to title eight of the education law. Such coverage shall not be subject to any durational benefit limitation or maximum for benefits, services, or visits provided under this paragraph.

(B) Nothing in this paragraph shall be construed to prevent the medical management or utilization review of the services or prevent a policy from requiring that services be provided through a network of participating providers.

(C) Coverage may be denied on the basis that such treatment is being provided to the insured pursuant to an individualized family service plan under section twenty-five hundred forty-five of the public health law or an individualized education plan under article eighty-nine of the education law. The provision of services pursuant to an individualized family service plan under section twenty-five hundred forty-five of the public health law or an individualized education plan under article eighty-nine of the education law shall not affect coverage under the policy for services provided on a supplemental basis outside of an

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 educational setting if such services are provided upon the referral of a
2 physician.

3 § 2. Section 4303 of the insurance law is amended by adding a new
4 subsection (yy) to read as follows:

5 (yy) (A) Every large group contract issued by a medical expense indem-
6 nity corporation, hospital service corporation and health service corpo-
7 ration which provides medical, major medical, or similar comprehensive-
8 type coverage shall, upon referral of a physician, provide coverage for
9 all costs for speech therapy for stuttering. Such speech therapy shall
10 include, but not be limited to, habilitative speech therapy treatment
11 and rehabilitative speech therapy treatment for stuttering, provided
12 such treatment is performed by a health care professional licensed
13 pursuant to title eight of the education law. Such coverage shall not be
14 subject to any durational benefit limitation or maximum for benefits,
15 services, or visits provided under this subsection.

16 (B) Nothing in this subsection shall be construed to prevent the
17 medical management or utilization review of the services or prevent a
18 policy from requiring that services be provided through a network of
19 participating providers.

20 (C) Coverage may be denied on the basis that such treatment is being
21 provided to the insured pursuant to an individualized family service
22 plan under section twenty-five hundred forty-five of the public health
23 law or an individualized education plan under article eighty-nine of the
24 education law. The provision of services pursuant to an individualized
25 family service plan under section twenty-five hundred forty-five of the
26 public health law or an individualized education plan under article
27 eighty-nine of the education law shall not affect coverage under the
28 policy for services provided on a supplemental basis outside of an
29 educational setting if such services are provided upon the referral of a
30 physician.

31 § 3. This act shall take effect January 1, 2028 and shall apply to
32 policies and contracts issued, renewed, modified, altered or amended on
33 or after such effective date. Effective immediately, the addition,
34 amendment and/or repeal of any rule or regulation necessary for the
35 implementation of this act on its effective date are authorized to be
36 made and completed on or before such effective date.